

Germany: Criminally Confiscated Assets Pathway for Ukraine

Operational Playbook (Finalized Confiscation Cases Only)

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! Strict Scope

This paper is limited to **criminal cases with finalized confiscation/forfeiture in Germany** (assets legally transferred to the state after criminal proceedings).

Excluded: assets only frozen/blocked under sanctions without a final criminal confiscation outcome.

! Practical Objective

Determine how Ukraine can lawfully obtain value from assets already confiscated by Germany in criminal proceedings, and what can be done immediately versus what needs legal/policy change.

1 Who Can Actually File (Plain Answer)

1.1 Can the think tank file claims itself?

Usually **no**. A think tank generally has no standing unless it is itself the direct injured owner/claimant.

1.2 Who should file instead? (Standing)

Actor	Can file claim for confiscated proceeds?	Typical role
Government of Ukraine (authorized body)	Yes, where legal entitlement is shown	Primary public claimant
Ukrainian ministry/agency	Yes, if it has legal mandate and victim link	Sector claimant (state property/public funds)
Ukrainian SOE	Yes, if direct victim/owner	Corporate claimant
Private victim (UA entity/person)	Yes, if directly harmed	Individual/corporate restitution claimant
German prosecutor	No, not as Ukraine's representative	Prosecutes crime, seeks confiscation <i>ex officio</i>
Think tank / research NGO	Normally no (unless direct victim)	Case development, evidence package, coordination

1.3 Practical operating model for the think tank

1. Select candidate finalized cases and identify the legally strongest claimant.
2. Build the evidence dossier and litigation memo (ownership, tracing, damage, legal theory).
3. Transfer filing package to authorized claimant + German counsel.
4. Track deadlines, appeals status, and enforcement distribution stage.
5. Run parallel policy track for state-to-state transfer where claimant route is weak.

2 “Lawsuit Mechanism” - Operational Steps

2.1 Competent Forum / Authority

- Criminal court for confiscation order
- Prosecutor’s office during investigation/prosecution phase
- Enforcement authority for distribution/liquidation stage
- Civil court if separate civil claim is chosen
- Federal vs Land level depends on prosecutorial/court jurisdiction and asset destination in budget system

2.2 Filing Mechanics

- Written filing to competent court/authority; structured legal application
- German language (certified translation for supporting foreign documents)
- Representation by counsel admitted in Germany strongly required for effectiveness
- Service via court channels (electronic filing where enabled)
- Court/legal fees depend on procedural route and value in dispute

2.3 Timeline and Decision Points

1. Seizure order in criminal investigation
2. Indictment and trial
3. Confiscation order
4. Appeals/finality
5. Enforcement and liquidation
6. Distribution decision (victim restitution and/or public budget route)
7. Potential transfer mechanism toward Ukraine

2.4 Typical Obstacles / Defenses

- Due process and proportionality objections
- Third-party rights and competing ownership claims
- Tracing failures (layered structures, nominees, offshore chains)
- Insufficient proof of direct victim entitlement
- Procedural timing misses and formal defects

3 Action Checklist (“How to Proceed”)

3.1 Documents you should prepare immediately

The evidence package must prove ownership, tracing, crime linkage, and damage. Prepare:

- Case-status memo proving final confiscation status
- Claimant mandate pack (authority + POA + legal personality evidence)
- Evidence index and chain-of-custody table
- Asset tracing report (transaction map + ownership map)
- Damages model (amount requested + calculation annexes)
- German-language filing set (application + exhibits list + certified translations)
- Deadline tracker (all statutory/procedural dates)

3.2 Practical success criteria

- Correct claimant with proven standing
- Direct linkage between confiscated value and claimant entitlement
- On-time filing with complete German-language evidentiary set
- Continuous enforcement follow-up until funds are actually transferred

4 Validated Case Studies (Framework-Mapped)

Framework takeaways

1. Germany has a working victim-claim route after final confiscation, but it is technically strict and evidence-driven.
2. Cross-border transfers to victim populations usually require a second governmental agreement layer after confiscation.
3. Successful models combine: final forfeiture + clear beneficiary design + monitored transfer mechanism.

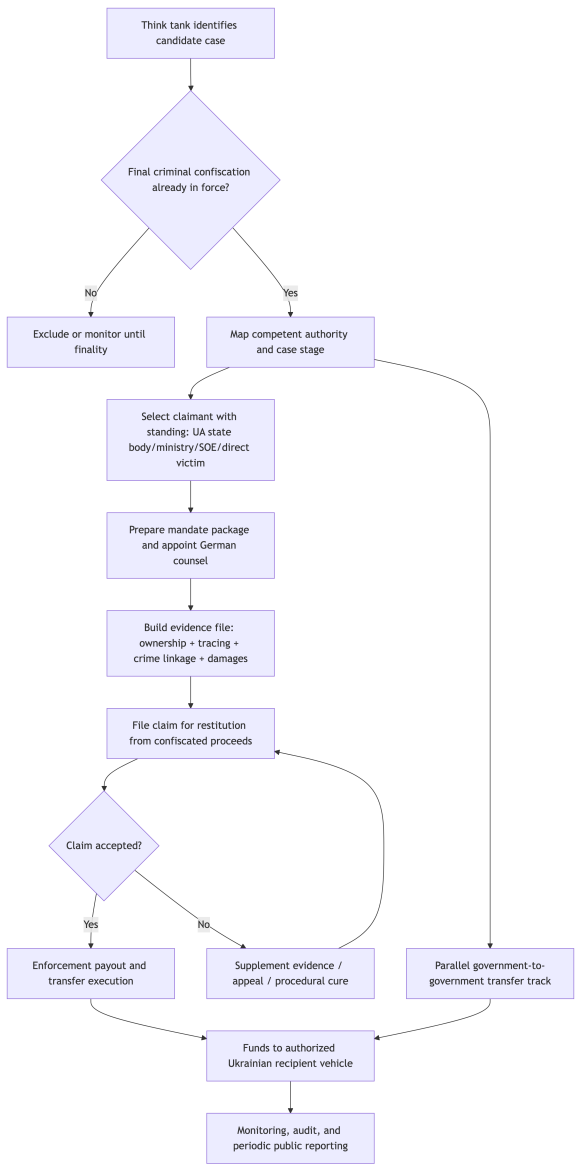
Case	Standing / Forum	Mechanism	Outcome	Lesson
Germany (Cum-Ex) OLG Köln 3 Ws 58-59/23 (Jul 2024)	Injured tax authorities as claimants; criminal enforcement phase	Claims after §459i notification; 6-month window; §459h(2) “mirror” linkage required	Court confirms mechanism; restricts payouts where linkage insufficient	Claimant route works; tracing/legal qualification is the bottleneck
US → Malaysia (1MDB)	US DOJ MLARS led forfeiture; Malaysia as beneficiary	Forfeiture litigation → DOJ repatriation decisions	41 actions since Jul 2016; >\$1.7bn seized; ~\$1.4bn returned (incl. \$452m Aug 2021, \$156m Jun 2024) to 1MDB Asset Recovery Trust Account	Large returns need long forfeiture phase + dedicated repatriation channel
UK → Nigeria (Ibora)	UK prosecutors recovered; Nigeria as victim state	UK–Nigeria agreement (9 Mar 2021)	£4.2m returned for public-benefit projects	Confiscation alone did not complete transfer; bilateral agreement operationalized destination
Switzerland → Nigeria (Abacha II)	Swiss authorities post-criminal; Nigeria beneficiary	2017 Switzerland– Nigeria–World Bank tripartite agreement	~USD 321m restitution with monitoring safeguards	Monitoring architecture reduces misuse risk, unlocks political/legal acceptance

Implication for Germany–Ukraine: Feasible now: victim/claimant route in finalized confiscation files (strict proof burden). Missing for scale: standing transfer framework converting German-confiscated value into structured Ukraine-directed disbursement. Best historical analogue: Swiss/UK style post-confiscation transfer agreement + safeguards.

Sources: OLG Köln 3 Ws 58-59/23; DOJ 1MDB (Jun 2024); UK–Nigeria (Mar 2021); Switzerland–Nigeria (Dec 2017).

5 Comparative Execution Diagrams

5.1 Diagram: Germany -> Ukraine (Think Tank Operational Model)



Ukraine pathway: how a think tank supports claims over finalized German confiscations